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Additional
Reply
of
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BEFORE THE HON'BLE SOLE ARBITRATOR

MR. NITIN N. SARDESSAI, SR. ADVOCATE

AT PANAJI GOA

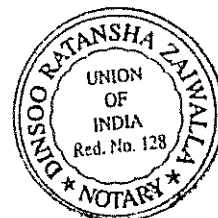
IN THE MATTER OF: -

Mr. Vikram Shah)
son of late Chinubhai Manilal Shah,)
aged 74 years, married,)
businessman, Indian National,)
resident of 28, Capri Building,)
9, Manav Mandir Road,)
Near Teen Batti Walkeshwar,)
Malabar Hill, Mumbai - 400 006.)
Maharashtra.) ...Claimant

Versus

1. Mr. Riva Trindade)
Major of age, Resident of)
Palbrika Mansion, .))
NIO Circle,)
Dona Paula,)
Tiswadi, Goa - 403004;)

2. Mrs. Albertina Trindade)
Major of age,)



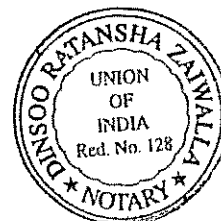
Resident of Palbrika Mansion,)
NIO Circle, Dona Paula,)
Tiswadi, Goa - 403004;)

3. Mrs. Karita Trindade)
Major of age,)
Resident of Palbrika Mansion,)
NIO Circle, Dona Paula,)
Tiswadi, Goa - 403004;)

4. Mr. Murlidhar Sadarangani)
Son of Shamdas Jetaram Sadarangani,)
Aged about 66 years,)
Resident of S-3, Eden Hall,)
Dr. Annie Beasant Road,)
Worli, Mumbai - 400 018.)

(all the above are registered addresses)
of the parties))

...Respondent



ADDITIONAL POINTS TO THE REPLY OF THE 4TH
RESPONDENT TO HIS REPLY TO THE CLAIM DATED
22.01.2025

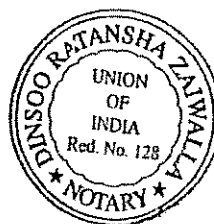
I am filing this additional statement to my said Reply dated 13.02.2025 as it would be relevant for the Ld. Arbitrator in framing his award.

1. The Respondent No. 4 would like to bring to the notice of the learned arbitrator the following additional facts on record regarding the claim statement of the claimant dated 22.01.2025 (not 20.01.2025 as mentioned in my reply of 13.02.2025)
2. I am submitting herewith the notarised copies of the Indusind Bank statement of the Respondent No. 4 for the period 30.11.2011 till 30.04.2013 highlighting the payments made to Pascoal Trindade date wise by Murlidhar Sadarangani of an amount of Rs. 1,06,50,000/- which is the amount mentioned in Annexure C, page no.65 of the claim statement filled by the claimant Mr. Vikram Shah as paid by Murli Sadarangani.



3. I am submitting herewith the tabular chart of the above payments F.Y. wise, which would show the current position to the Claimant Statement of claim dated 22.01.2025.

Date	Amount	F.Y	Total	Grand Total
8.12.2011	10,00,000/-	2011-12	10,00,000/-	
9.05.2012	5,50,000/-	2012-13		
24.09.2012	5,00,000/-	2012-13		
16.10.2012	10,00,000/-	2012-13		
17.10.2012	10,00,000/-	2012-13		
18.10.2012	9,50,000/-	2012-13		
20.10.2012	10,00,000/-	2012-13		
07.11.2012	2,00,000/-	2012-13		
22.11.2012	11,50,000/-	2012-13		
22.03.2013	5,00,000/-	2012-13	68,50,000/-	
03.04.2013	18,00,000/-	2013-14		
15.04.2013	7,50,000/-	2013-14		
30.04.2013	2,50,000/-	2013-14	28,00,000/-	
				1,06,50,000/-



As can be seen from above tabular statement Rs. 68,50,000/- is the amount paid during F.Y.2012-13 which is the amount appearing in Article of Association of PVM Associates dated 01.04.2013 in clause 9, and as also mentioned in clause 6(l) of the claim statement.

4. The Respondent No. 4 submits that as mentioned in his earlier claim statement Kuval Projects Pvt. Ltd. has paid an non-interest bearing refundable deposit to the AOA of Rs. 2,21,00,000/-out of which the Respondent no.4 was entitled to withdraw 24.3% amounting to Rs. 53,70,300/- (Rs. Fifty-Three Thousand Seventy Thousand Three Hundred only) and the debit in the current account of the Respondent as appearing in the balance sheet of PVM Associates annexed to the claim statement on page no. 230 is Rs: 48,21,958/- (Rs. Forty-Eight Lakhs Twenty-One Thousand Nine Hundred Fifty-Eight only), which the Respondent no. 4 has withdrawn.

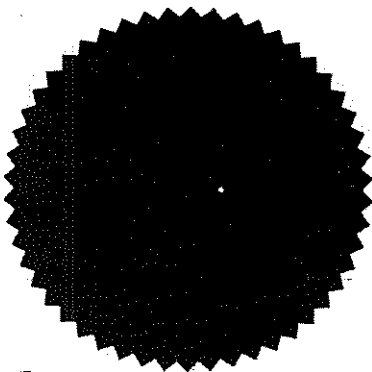
5. The Respondent No. 4 is submitting a notarised Bank statement of HDFC Bank statement of PVM Associates for the period 22.03.2016 till 27.11.2017. The said statement shows all the transactions for the above period in PVM Associates for which



the withdrawal cheques were signed by all the three members of the AOA . The statement shows a net credit balance in the account of PVM Associates of Rs. 19,360/- as at 27.11.2017

6. The Respondent No.4 would further like to point out that, the bank statement also shows a credit of Rs. 11,20,000/- from Alka Sadarangani, Rs. 11,20,000/- from Sharan Sadarangani, and Rs.10,00,000/- from Sneha Sadarangani. The figures and amounts as appearing in the credit & debit side of the balance sheet annexed to the claim statement dated 22.01.2025 at page 230 are the same since 27.11.2017, after which date there is no operation of the said Account except minor miscellaneous expenses.

Solemnly affirmed at Mumbai on this 21st day of March, 2025.



[Handwritten Signature]

DEPONENT

Signed Before Me,

[Handwritten Signature]

DINSOO ZAIWALLA
NOTARY
UNION OF INDIA
R.S.No.4710 Dt.21.03.2025

Dinsoo Zaiwalla
Zaiwalla & Co.
Advocates, Solicitors & Notary
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Mumbai-400 001. (India)

